

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONXIndex No.:
Date Purchased:

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GRECIA WHITFIELD, as Administratrix of the Estate of
LASHAUN WHITFIELD, deceased, L.S., an infant by his
mother and natural guardian, GRECIA WHITFIELD, and
GRECIA WHITFIELD, individually, SHAMYA SANTOS,
and TARIQ ROSARIO,

SUMMONSPlaintiffs designate Bronx
County as the place of trial.

Plaintiffs,

The basis of venue is:
Location of incident

-against-

1430 Unionport Road
Bronx, NY 10462JAVISH ORTIZ, individually and in his official capacity,
THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, and JOHN DOES 1-4,

County of Bronx

Defendants.
-----X**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 25, 2022

MARK DAVID SHIRIAN P.C.

By: 

MARK D. SHIRIAN, ESQ.
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16 Court Street
Brooklyn, New York 11241

To:

JAVISH ORTIZ

Via Place of Employment

NYPD - 40th Precinct

257 Alexander Avenue

Bronx, NY 10454

THE CITY OF NEW YORK

Attn: Corporation Counsel

100 Church Street

New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

Attn: Corporation Counsel

100 Church Street

New York, New York 10007

JOHN DOES 1-4

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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GRECIA WHITFIELD, as Administratrix of the Estate of
LASHAUN WHITFIELD, deceased, L.S., an infant by his
mother and natural guardian, GRECIA WHITFIELD, and
GRECIA WHITFIELD, individually, SHAMYA SANTOS,
and TARIQ ROSARIO,

Index No.:

Date Purchased:

VERIFIED COMPLAINT

Plaintiffs,

-against-

JAVISH ORTIZ, individually and in his official capacity,
THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, and JOHN DOES 1-4,

Defendants.

-----X
Plaintiffs, **GRECIA WHITFIELD, as Administratrix of the Estate of LASHAUN WHITFIELD, deceased, L.S., an infant by his mother and natural guardian, GRECIA WHITFIELD, and GRECIA WHITFIELD, individually, SHAMYA SANTOS, and TARIQ ROSARIO,** by their attorneys, **MARK DAVID SHIRIAN P.C.,** complaining of the Defendants, **JAVISH ORTIZ, individually and in his official capacity, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, and JOHN DOES 1-4** (collectively, “defendants”), respectfully alleges, upon information and belief that:

1. At all times hereinafter mentioned, the plaintiff, **GRECIA WHITFIELD,** was and still is the mother and natural guardian of the infant plaintiff, **L.S.,** and brings this instant action in said capacity on behalf of the infant plaintiff, **L.S.**
2. At all times herein mentioned, Plaintiff, **TARIQ ROSARIO,** was and presently is a resident of the State of New York.
3. At all times herein mentioned, Plaintiff, **GRECIA WHITFIELD,** was and presently is a resident of the State of Pennsylvania.

4. At all times herein mentioned, Plaintiff, **INFANT L.S.**, was and presently is a resident of the State of Pennsylvania.

5. At all times herein mentioned, Plaintiff, **SHAMYA SANTOS**, was and presently is a resident of the State of Pennsylvania.

6. Within 90 days after the claim arose, on November 17, 2021, a Notice of claim setting forth the name and post office address of the Plaintiffs and of their attorneys; the nature of the claim; the time when, the place where, and the manner in which the claim arose; and the items of damage and injuries claimed to have been sustained so far as then practicable, was duly served upon the defendants, **THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT**, by the plaintiff, **GRECIA WHITFIELD**, as then proposed administrator of the Goods, Chattels and Credits of **LASHAUN WHITFIELD**.

7. That on November 17, 2021, Plaintiff, **GRECIA WHITFIELD**, as Administratrix of the Estate of **LASHAUN WHITFIELD**, herein duly presented in writing to the defendants, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.

8. On January 27, 2022, Plaintiff, **GRECIA WHITFIELD**, as Administratrix of the Estate of **LASHAUN WHITFIELD**, appeared for a General Municipal Law § 50-h hearing.

9. That more than thirty days have elapsed since the hearing and New York City has failed to settle and refused to make an adjustment of any claim herein set forth.

10. Prior to the commencement of this action, and more particularly, on the 28th day of February, 2022, the plaintiff, **GRECIA WHITFIELD**, was duly appointed Administratrix of the Estate of **LASHAUN WHITFIELD**, deceased, by Certificate of Grant of Letters of

Administration by Rachel Ezzell Berry, Register for the Probate of Wills and Granting Letters Testamentary and of Administration in and for County of Delaware, in the Commonwealth of Pennsylvania, has duly qualified as such and is now acting in said capacity.

11. Within 90 days of the appointment of Grecia Whitfield as Administratrix of the Estate of **LASHAUN WHITFIELD**, deceased, on April 4, 2022, a Notice of claim setting forth the name and post office address of the plaintiffs and of their attorneys; the nature of the claim; the time when, the place where, and the manner in which the claim arose; and the items of damage and injuries claimed to have been sustained so far as then practicable, was duly served upon the defendants, **THE CITY OF NEW YORK and NYPD**.

12. In accordance with General Municipal Law Section 50-e and within ninety days of the events giving rise to these claims, Plaintiff, **GRECIA WHITFIELD**, filed a written Notice of Claim with the New York City Office of the Comptroller.

13. That on November 17, 2021, Plaintiff, **GRECIA WHITFIELD**, herein duly presented in writing to the defendants, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.

14. On January 27, 2022, Plaintiff, **GRECIA WHITFIELD**, appeared for a General Municipal Law § 50-h hearing.

15. That more than thirty days have elapsed since the hearing and New York City has failed to settle and refused to make an adjustment of any claim herein set forth.

16. In accordance with General Municipal Law Section 50-e and within ninety days of the events giving rise to these claims, Plaintiff, **L.S., an infant by his mother and natural guardian, GRECIA WHITFIELD**, filed a written Notice of Claim with the New York City

Office of the Comptroller.

17. That on November 17, 2021, Plaintiff, **L.S., an infant by his mother and natural guardian, GRECIA WHITFIELD**, herein duly presented in writing to the defendants, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.

18. On January 27, 2022, Plaintiff, **L.S., an infant by his mother and natural guardian, GRECIA WHITFIELD**, appeared for a General Municipal Law § 50-h hearing.

19. That more than thirty days have elapsed since the hearing and New York City has failed to settle and refused to make an adjustment of any claim herein set forth.

20. In accordance with General Municipal Law Section 50-e and within ninety days of the events giving rise to these claims, Plaintiff, **SHAMYA SANTOS**, filed a written Notice of Claim with the New York City Office of the Comptroller.

21. That on November 17, 2021, Plaintiff, **SHAMYA SANTOS**, herein duly presented in writing to the defendants, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.

22. On January 27, 2022, Plaintiff, **SHAMYA SANTOS**, appeared for a General Municipal Law § 50-h hearing.

23. That more than thirty days have elapsed since the hearing and New York City has failed to settle and refused to make an adjustment of any claim herein set forth.

24. In accordance with General Municipal Law Section 50-e and within ninety days of the events giving rise to these claims, Plaintiff **TARIQ ROSARIO** filed a written Notice of Claim

with the New York City Office of the Comptroller.

25. That on November 17, 2021, Plaintiff **TARIQ ROSARIO**, herein duly presented in writing to the defendants, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.

26. On January 27, 2022, Plaintiff **TARIQ ROSARIO** appeared for a General Municipal Law § 50-h hearing.

27. That more than thirty days have elapsed since the hearing and New York City has failed to settle and refused to make an adjustment of any claim herein set forth.

28. That all conditions precedent to the bringing of this action has been complied with.

29. That their action was commenced within one year and ninety (90) days after the accrual of the cause of action herein.

30. That at all times herein mentioned, Parkchester Funeral Home, was a funeral home located at 1430 Unionport Road, County of Bronx, City and State of New York 10462, duly organized and existing under and by virtue of the Laws of the State of New York.

31. That at all times herein mentioned, Defendant **THE CITY OF NEW YORK** (hereinafter referred to as "CITY) was and still is a municipal corporation, duly organized and existing under and by virtue of the Laws of the State of New York.

32. That at all times herein mentioned, Defendant **NEW YORK CITY POLICE DEPARTMENT** (hereinafter referred to as "NYPD") was and still is a municipal corporation, duly organized and existing under and by virtue of the Laws of the State of New York.

33. At all times herein mentioned, Defendant **JAVISH ORTIZ**, was and is a member and

employee of the New York City Police Department (“NYPD”) and is sued in his individual and professional capacities.

34. Upon information and belief, Defendant **JAVISH ORTIZ** is a NEW YORK CITY POLICE DEPARTMENT Detective and employee, employed by the CITY under the direction of the NYPD and was acting in furtherance of the scope of his employment and acting under color of statutes, ordinances, regulations, policies, customs, and usages of the City and State of New York, the County of Bronx. Defendant **JAVISH ORTIZ** is being sued herein in his individual and official capacity.

35. At all times relevant in this complaint, Defendant **JAVISH ORTIZ** was employed by defendants CITY and NYPD.

36. At all times relevant in this complaint, Defendants John Does 1-4, are residents of the State of New York whose identities are unknown at this time.¹

37. At all times mentioned, Defendants were acting under color of state law, under color of the statutes, ordinances, regulations, policies, and customs and usages of the City of New York.

38. This action is being commenced within one year and 90 days after the happening of the event upon which the claim is based.

39. Venue is proper in this Court as Defendant New York City has offices, conducts business, and can be found in Bronx County, and the causes of action arose and occurred in Bronx County.

40. Upon information and belief, that at all times herein mentioned, **THE CITY OF NEW**

¹ <https://www.nydailynews.com/new-york/nyc-crime/ny-man-arrested-in-funeral-home-gunfight-20210923-l2nhkvk7hjamdck6r5xrqoskb4-story.html>

YORK operated and maintained an agency known as the **NEW YORK CITY POLICE DEPARTMENT**.

41. Upon information and belief, that at all times herein mentioned, defendant, **NEW YORK CITY POLICE DEPARTMENT**, was under the control and direction of the City of New York.

FACTUAL ALLEGATIONS

42. Plaintiff TARIQ ROSARIO was shot at the funeral of his cousin, Demetry Aristud.

43. On August 28, 2020, Demetry Aristud was shot in the shoulder and his friend, Anthony (last name unknown), was murdered in or around 174th Street in the Bronx, City and State of New York, by an unknown individual ("2020 Shooting").

44. Upon information and belief, the aforementioned murder and shooting was gang-related

45. On or about August 27, 2021, at around 9:30 AM, Demetry Aristud was murdered in or around 137th Street and St. Anns, County of Bronx, and City and State of New York, which is part of the jurisdiction of the 40th Precinct ("Aristud Murder").

46. Upon information and belief, the aforementioned murder and shooting was gang-related and related to the previous 2020 shooting.

47. On or about August 27, 2021, at around 3:30 PM, Defendant Javish Ortiz, Detective of the 40 Precinct appeared at Lincoln Hospital.

48. Plaintiff Rosario's and Demetry Aristud's cousin, Patricia Carillo and Demetry Aristud's sister, was also present at Lincoln Hospital and Defendant Ortiz offered his condolences.

49. Ortiz had previously met Patricia Carillo while she worked at a T-Mobile store.

50. Ms. Carillo explained to Ortiz the coincidence of the 2020 shooting with the recent Aristud murder.

51. Defendant Ortiz assured Patricia Carillo that the NYPD would catch Aristud's killer and

the family had nothing to worry about.

52. Defendant Ortiz also asked for the details of the funeral arrangements so he would make sure to assign police coverage at Aristud's funeral.

53. On or about August 28, 2021, Ortiz reached out by telephone to speak to Demetry Aristud's mother, Betty Aristud, and sent his condolences.

54. Betty Aristud then asked Defendant Ortiz for police presence and protection at the funeral of Demetry Aristud.

55. Defendant Ortiz said that he would provide police presence and protection at the funeral of Demetry Aristud.

56. On or about August 30, 2021, the family of Demetry Aristud made arrangements for his funeral at the Parkchester Funeral Home, located at 1430 Unionport Road, County of Bronx, City and State of New York 10462.

57. The funeral was to be held on or about September 2, 2021 from 4 - 8 PM and September 3, 2021 from 4 – 8 PM.

58. On or about August 30, 2021, Lexie Herrera called Ortiz in order to provide him with the funeral arrangements but he was unavailable.

59. Then, Lexie Herrera texted Ortiz and provided Ortiz with the funeral address, hours, time and location.

60. Ortiz acknowledged the funeral information and time and responded "ok".

61. On or about August 31, 2021, Ortiz appeared at Betty Aristud's home located in the Bronx.

62. Defendant Ortiz appeared with his female partner, and Maria Encarcion, Sylvia Aristud, Lexie Herrera, Patricia Carillo and Betty Aristud were also present.

63. Defendant Ortiz returned Demetry Aristud's property and he once again promised that a

police car and presence would be present at the funeral location for two days and one day at church.

64. On or about September 1, 2021, Detective Ortiz texted Ms. Carillo at approximately 6:29 PM the following: "Hey, can hit me up when you get chance."

65. Ms. Carillo then called Ortiz on September 1, 2021, approximately an hour and a half later and he spoke about a possible suspect in the Aristud murder.

66. Ms. Carillo mentioned to Ortiz that she saw an Instagram story about a possible drive-by shooting in a car which was going to occur soon that was related to the Aristud murder.

67. Detective Ortiz was supposed to go to Betty Aristud's house in order to return certain jewelry that that the hospital still had that had belonged to Demetry Aristud but he could not make it.

68. Ortiz assured Ms. Carillo that he had the funeral information for tomorrow and he made assurances that the NYPD would be present for both days of the funeral and one day at the church.

69. These assurances by Defendant Ortiz that a police presence and protection would be provided at the Aristud funeral were shared with other family members and attendees who attended the Aristud funeral, including the Plaintiffs.

70. On September 2, 2021, the first day that the funeral took place, an unmarked vehicle was parked outside of the funeral and the Plaintiffs, including the other attendees of the funeral were under the impression that this was the police presence.

71. Later that evening, Ortiz called Lexie Herrera in order to confirm whether the NYPD showed up to the funeral. Lexie Herrera mentioned to Ortiz that she spotted an unmarked vehicle outside of the funeral home, which was in front of the Chang Li Supermarket. Ortiz then confirmed that the unmarked car was in fact the NYPD.

72. On or about September 3, 2021, before the funeral started at 4PM, Ortiz called Ms. Carillo

in the afternoon at around 1 PM.

73. Defendant Ortiz informed Ms. Carillo that the NYPD planned on releasing a photo of the suspect killer of Demetry Aristud on the news later that evening.

74. Ms. Carillo mentioned that it would not be a good idea and suggested that he instead provide a photograph of the killer to the family before releasing the same to the press.

75. Defendant Ortiz responded “OK, I will see you at the funeral at 4 PM.”

76. However, on or about September 3, 2021, no members of the NYPD appeared at the funeral before 7 PM.

77. At around 6:57 PM on September 3, 2021, Ortiz called Ms. Carillo and said that he got caught up in something and could not make it to the funeral but that the photograph of the killer would be on the news.

78. At around 7:08 PM on September 3, 2021, a Motor vehicle drove by outside of the Parkchester Funeral Home, and started shooting at the attendees of the funeral, including Plaintiffs.

79. During the shooting, two people were shot, Plaintiff Rosario and Plaintiffs’ Decedent, Lashaun Whitfield was killed.

80. During the shooting, Plaintiffs’ Decedent, Lashaun Whitfield, was shot and killed and Plaintiff Grecia Whitfield, was within the zone of danger when her husband, Lashaun Whitfield, was shot and killed.

81. During the shooting, Plaintiffs’ Decedent, Lashaun Whitfield, was shot and killed and Plaintiff infant, L.S., was within the zone of danger when his father, Lashaun Whitfield, was shot and killed.

82. During the shooting, Plaintiffs’ Decedent, Lashaun Whitfield, was shot and killed and Plaintiff Shamyia Santos was within the zone of danger when her father was shot and killed.

83. Plaintiff Rosario was shot in his left leg into his left inner leg and right leg.

84. During the shooting, Carillo called Ortiz and reported the shooting and asked him why the NYPD was not present.

85. Defendant Ortiz told Carillo to call 911 and then told her to stay on the line and that he that he would call them and show up himself.

86. Detective Ortiz showed up with members of the 43rd Precinct and Carillo asked him why he did not come earlier or have anyone from the NYPD present.

87. Ortiz said that someone from the 43rd Precinct was supposed to be there in order to protect the attendees of the funeral but an officer from the 43rd Precinct said that he was unaware of anything.

88. Later that evening, Detective Ortiz called Patricia Carillo and said that they caught Demetry Aristud's killer and would have a police car at the church program on Saturday, September 4, 2021.

89. On or about September 4, 2021, six police cars showed up at St. Luke's Church, located at 623 East 137th Street, Bronx, New York 10454. However, none of the family members attended out of fear.

90. On or about Sunday, September 5, 2021, Detective Perez of the 43rd Precinct said that it looked like the shooting at the funeral home was retaliatory to the catching of Demetry Aristud's murderer.

91. That member(s) of the Defendant NYPD, including Defendant Ortiz, the plaintiffs and their family members that they would protect them at the aforementioned funeral.

92. That the Plaintiffs received the representation of Defendant Ortiz of the NYPD that the NYPD protect them at the aforementioned funeral.

93. That the Plaintiffs relied upon the representation of Defendant Ortiz of the NYPD that the NYPD would protect them at the aforementioned funeral.

94. That the NYPD in fact did not protect the Plaintiffs and the NYPD failed to inform them of the same.

95. That the Defendants did not protect the Plaintiffs and as a result,

96. By reason of the foregoing, the plaintiff's decedent, **LASHAUN WHITFIELD**, suffered certain gunshot wounds and injuries to his chest and other body parts, resulting in his death on September 3, 2021.

97. By reason of the foregoing, the plaintiff's decedent left his surviving wife, **GRECIA WHITFIELD**, his daughter, **SHAMYA SANTOS**, and infant son, **L.S.**

98. As a result of decedent's wrongful death, the aforesaid next-of-kin have been damaged.

99. That by reason of the foregoing, Plaintiff **TARIQ ROSARIO** was caused to sustain serious, severe and permanent personal injuries, the full extent of which are as yet unknown and to suffer pain, shock, mental anguish, psychological and emotional damage; that these injuries and their effects will be permanent; and as a result of said injuries the Plaintiff has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Plaintiff was, and will continue to be, rendered unable to perform Plaintiff's normal day to day activities and duties and has sustained substantial resultant loss there from.

100. That by reason of the foregoing, Plaintiff **GRECIA WHITFIELD** was caused to sustain serious, severe and permanent personal injuries, the full extent of which are as yet unknown and to suffer pain, shock, mental anguish, psychological and emotional damage; that these injuries and their effects will be permanent; and as a result of said injuries the Plaintiff has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result,

Plaintiff was, and will continue to be, rendered unable to perform Plaintiff's normal day to day activities and duties and has sustained substantial resultant loss there from.

101. That by reason of the foregoing, Plaintiff **SHAMYA SANTOS** was caused to sustain serious, severe and permanent personal injuries, the full extent of which are as yet unknown and to suffer pain, shock, mental anguish, psychological and emotional damage; that these injuries and their effects will be permanent; and as a result of said injuries the Plaintiff has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Plaintiff was, and will continue to be, rendered unable to perform Plaintiff's normal day to day activities and duties and has sustained substantial resultant loss there from.

102. That by reason of the foregoing, Plaintiff **infant, L.S.**, was caused to sustain serious, severe and permanent personal injuries, the full extent of which are as yet unknown and to suffer pain, shock, mental anguish, psychological and emotional damage; that these injuries and their effects will be permanent; and as a result of said injuries the Plaintiff has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Plaintiff was, and will continue to be, rendered unable to perform Plaintiff's normal day to day activities and duties and has sustained substantial resultant loss there from.

103. The amounts sought exceed the jurisdictional limits of all Courts which would otherwise have jurisdiction.

104. It is hereby alleged, pursuant to CPLR 1603, that the foregoing cause of action is exempt from the operation of CPLR 1601, by reason of one or more the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF ALL PLAINTIFFS
AGAINST ALL DEFENDANTS

105. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the previous

paragraphs of this complaint, with the same force and effect as if more fully set forth at length herein.

106. A cause of action for negligence exists when: 1) defendant owed a duty to Plaintiff to protect the plaintiff from a particular injury or damage; 2) defendant breached this duty; 3) defendant's breach was the proximate cause of injury or damage to plaintiff; and 4) plaintiff suffered damages caused by the breach.

107. On or about September 3, 2021, despite having specific knowledge of the imminent danger and need to provide adequate, proper and close supervision over the funeral that the Plaintiffs attended, Defendants, **JAVISH ORTIZ, individually and in his official capacity, THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT**, failed to adequately stop the drive-by shooting and provide a safe environment for Plaintiffs.

108. On or about September 3, 2021, Defendants, **JAVISH ORTIZ, individually and in his official capacity, THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT**, created a special relationship by assuming a duty to act on behalf of Plaintiffs and Plaintiffs justifiably relied on that assumption of duty to their detriment.

109. A municipality has a special duty to a plaintiff when there is a special relationship. A special relationship exists when (1) the municipality assumed an affirmative duty, through promises or actions, to act on behalf of the injured party; (2) there was knowledge on the part of the municipality's agents that inaction could lead to harm; (3) there was some form of direct contact between the municipality's agents and the injured party; and (4) the party justifiably relied on the municipality's undertaking.

110. A justifiable reliance exists when a municipality's voluntary undertaking has lulled the injured party into a false sense of security and has thereby induced her either to relax her own

vigilance or to forego other available avenues of protection.

111. In order to satisfy the fourth element, plaintiff's reliance must have placed her in a worse position than she would have been had the municipality never assumed the duty.

112. On or about September 3, 2021, Defendants, **JAVISH ORTIZ, individually and in his official capacity, THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT**, voluntarily lulled Plaintiffs and other attendees of the aforementioned funeral into a false sense of security which induced them to relax their own vigilance and caused them to be unprepared for the drive-by shooting.

113. On or about September 3, 2021, because of her reliance on Defendants, **JAVISH ORTIZ, individually and in his official capacity, THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT**, the Plaintiffs were placed in a worse position than they would have been had Defendants not assumed a duty.

114. The Plaintiffs would have stayed vigilant and more alert and guarded had it not been for Defendants' assurances.

115. On or about September 3, 2021, relying on Defendants' representations, the Plaintiffs believed that they were safe was and would be safe from violence, aggression and harm.

116. Plaintiffs were induced to forgo any other available avenues of protection by relying on the representations made and voluntary undertaking provided by Defendants, **JAVISH ORTIZ, individually and in his official capacity, THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT**.

117. That as a result of the September 3, 2021 incident and Defendants' failure to provide protection and negligence or gross negligence in its protection of Plaintiffs and the other attendees of the aforementioned funeral, leading to a drive-by shooting upon Plaintiff Tariq Rosario and

Plaintiffs' Decedent, Lashaun Whitfield, in the presence of Grecia Whitfield, L.S., infant, and Shamyia Santos, Plaintiffs were caused to suffer severe and substantial personal physical, psychological and emotional injuries while lawfully present upon the premises of the funeral home.

118. On or about September 3, 2021, that the negligence, gross negligence, and carelessness of Defendants were the proximate cause of the aforementioned incident and its aftermath.

119. The City of New York, NYPD and Detective Ortiz were negligent in that a special duty existed when they made an assumption, through promises or actions, of an affirmative duty to act on behalf of the Plaintiff(s) who was injured. The City of New York, NYPD and Detective Ortiz and its employees and agents, through definite promises or actions, of an affirmative duty to act on behalf of the injured party, made a clear and definite promise to take specific action, namely to provide police presence and protection at the aforementioned funeral and church for the safety and protection of the family and attendees of the Aristud funeral. The promise to provide police presence was definite enough to generate justifiable reliance by Plaintiffs. The City of New York, NYPD and Detective Ortiz and its employees and agents had knowledge that inaction could lead to harm and that there was basis for the police to have realized that their failure to provide police protection and presence at the Aristud funeral could lead to the harm that occurred. The City of New York, NYPD and Detective Ortiz and its agents and employees had some form of direct contact between the municipality's agents and the injured Plaintiff(s). The assurances made by The City of New York, NYPD and Detective Ortiz and its agents and employees were relayed to the injured Plaintiff(s) and the injured Plaintiff(s)' justifiably relied on the municipality's affirmative undertaking and assurances. The assurances made by The City of New York, NYPD and Detective Ortiz and its agents and employees was extended to all attendees of the Aristud

funeral, and the circumstances were such that Detective Ortiz, who gave the assurance knew, or should have known, that it would be conveyed to the injured Plaintiff(s).” The City of New York, NYPD and Detective Ortiz and its agents and employees conduct lulled the injured plaintiff(s) into a false sense of security, thereby inducing him to either relax his own vigilance or forgo other avenues of protection and placing himself in a worse position than he would have been had the defendants never assumed the duty.

120. That as a direct result of the incident and its aftermath, Plaintiffs were caused to sustain serious and permanent physical psychological and emotional injuries.

121. That Defendants’ duty and breach of the duty thereof was the direct and proximate cause of Plaintiffs’ physical, psychological, and emotional injuries.

122. That at all times hereinafter mentioned, the Defendants herein failed to properly and adequately supervise and control the funeral and or failed to prevent the dangerous activities and or failed to take preventive action that caused the Plaintiffs to be injured.

123. The above-mentioned occurrence and the results thereof were caused wholly and solely by the negligence of Defendants, their agents, servants and or employees, departments, agencies and those acting under their direction, behest and control were negligent, careless, reckless, and violated applicable statutes, ordinances, rules, orders and requirements in the ownership, operation, management, maintenance, care and control of the funeral home, in failing to hire efficient and or sufficient personnel in connection with the operation, management, control, and or supervision of said funeral home; failing to train their employees and or agents so as to enable them to adequately and properly provide a safe environment; failing to train their employees and or agents so as to enable them to adequately and properly control attendees and or persons in the funeral home; failing to promulgate proper and or adequate rules and regulations governing the

proper supervision to be provided and rendered by those agents, servants and or employees hired to operate, manage, control, supervise, and or maintain said funeral home; failing to promulgate proper and or adequate rules and or regulations governing the proper care, guidance and or supervision to be provided and rendered to those utilizing said funeral home; failing to properly and or adequately monitor the care, guidance and or supervision provided at said funeral home; failing to ensure that said funeral home provided those in its charge and utilizing its facility with a safe and proper environment; failing to properly and or adequately provide guidance for and or supervise the Plaintiffs herein; failing to prevent outside attendees from interfering with the injured Plaintiffs' experience at the funeral of their loved one; failing to provide adequate supervision at the time and place of the incident; failing to adhere to implemented measures designed specifically to protect Plaintiffs against such incidents; failing to abide by Defendants' security plan; failing to carry out Defendants' obligation and responsibility of supervision; failing to prevent and or stop inappropriate activity in the funeral home and other areas throughout the funeral home; having full knowledge that the John Does 1-4 attackers had a violent and hostile propensity to people specifically the attendees of the aforementioned funeral, but in failing to protect Plaintiffs; employing unqualified or underqualified individuals; failing to provide adequate and necessary security at said funeral home; and failing to provide adequate security during this period; failing to use that degree of care and caution warranted under all of the surrounding circumstances; failing to adequately protect Plaintiffs despite having full knowledge of the dangers and threats; failing to take reasonable measures and precautions to prevent the drive-by shooting despite Defendants' notice and knowledge of the threat; having specific knowledge and notice of the dangerous conduct which caused injury and knowledge that such acts could have been reasonably anticipated; failing to provide proper and adequate supervision of Plaintiffs and to protect Plaintiffs' safety during the

funeral despite specific knowledge of an imminent likely threat; failing to see the normal and foreseeable consequences of the situation created by the Defendants' negligence; being requested to provide security by the Plaintiffs' family members, but failing to provide any such adequate security; failing to stop the drive-by shooting that could have been avoided if Defendants acted appropriately under the circumstances; failing to provide safety and security to Plaintiffs after providing them with an affirmative promise and assurance of protection and safety; failing to provide Plaintiffs with adequate safety after Plaintiff detrimentally relied upon the Defendants' assurances that they were safe and would not be harmed any further; negligently acting or failing to act based upon the special relationship created between the Defendants and Plaintiff; in violating the Codes, Rules and Regulations of the State of New York, and in otherwise being negligent, grossly negligent, careless, reckless and violating applicable statutes, ordinances, rules, orders and requirements; and in otherwise failing to exercise a reasonable standard of care.

124. That by reason of the foregoing, Plaintiffs were caused to sustain serious, severe and permanent personal injuries, the full extent of which are as yet unknown, and to suffer pain, shock, mental anguish, psychological and emotional damage; that these injuries and their effects will be permanent; and as a result of said injuries the Plaintiffs have been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Plaintiffs were, and will continue to be, rendered unable to perform Plaintiffs' normal day to day activities and duties and have sustained a resultant loss there from.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF ALL PLAINTIFFS
AGAINST DEFENDANT ORTIZ**

125. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the previous paragraphs of this complaint, with the same force and effect as if more fully set forth at length herein.

126. A cause of action for negligence exists when: 1) defendant owed a duty to plaintiff to protect the plaintiff from a particular injury or damage; 2) defendant breached this duty; 3) defendant's breach was the proximate cause of injury or damage to plaintiff; and 4) plaintiff suffered damages caused by the breach

127. On or about September 3, 2021, despite having specific knowledge of the imminent danger and need to provide adequate, proper and close supervision over Plaintiffs, Defendant ORTIZ failed to adequately stop JOHN DOES 1-4 and provide a safe environment for Plaintiffs at the aforementioned funeral.

128. Prior to and including on or about September 3, 2021, Defendant ORTIZ created a special relationship by assuming a duty to act on behalf of Plaintiffs and Plaintiffs justifiably relied on that assumption of duty to their detriment.

129. A municipality has a special duty to a plaintiff when there is a special relationship. A special relationship exists when (1) the municipality assumed an affirmative duty, through promises or actions, to act on behalf of the injured party; (2) there was knowledge on the part of the municipality's agents that inaction could lead to harm; (3) there was some form of direct contact between the municipality's agents and the injured party; and (4) the party justifiably relied on the municipality's undertaking.

130. A justifiable reliance exists when a municipality's voluntary undertaking has lulled the injured party into a false sense of security and has thereby induced them either to relax their own vigilance or to forego other available avenues of protection. In order to satisfy the fourth element, plaintiff's reliance must have placed them in a worse position than she would have been had the municipality never assumed the duty.

131. On or about September 3, 2021, Defendant Ortiz voluntarily lulled Plaintiffs into a false

sense of security which induced them to relax her own vigilance and caused them to be unprepared for the drive-by shooting at the aforementioned funeral.

132. On or about September 3, 2021, because of her reliance on Defendant ORTIZ, Plaintiffs were placed in a worse position than they would have been had Defendant Ortiz not assumed a duty. Plaintiffs would have remained vigilant and more alert and guarded had it not been for Defendant's assurances.

133. On or about September 3, 2021, relying on Defendant ORTIZ's representations and assurances, Plaintiffs believed they were and would be safe from further aggression and harm.

134. Plaintiffs were induced to forgo any other available avenues of protection by relying on the representations made and voluntary undertaking provided by Defendant ORTIZ.

135. That as a result of the September 3, 2021 incident and Defendant ORTIZ's failure to provide protection and negligence in their handling of providing security and protection at the aforementioned funeral, leading to a drive-by shooting attack on Plaintiffs, Plaintiffs were caused to suffer severe personal physical, psychological and emotional injuries while lawfully present upon the premises of the funeral home.

136. On or about September 3, 2021, the negligence and carelessness of Defendant ORTIZ was the proximate cause of the aforementioned incident and its aftermath.

137. That as a direct result of the incident and its aftermath, Plaintiffs were caused to sustain serious and substantial injuries when they were violently attacked by JOHN DOES 1-4, causing the Plaintiffs to sustain serious and permanent physical psychological and emotional injuries.

138. That Defendant ORTIZ's duty and breach of the duty thereof was the direct and proximate cause of Plaintiffs' physical, psychological, and emotional injuries.

139. That at all times hereinafter mentioned, the Defendant ORTIZ herein failed to properly and

adequately supervise and control the funeral and or failed to prevent the dangerous activities and or failed to take action in order to prevent the drive-by shooting by JOHN DOES 1-4 that caused the Plaintiffs to be injured.

140. The above-mentioned occurrence and the results thereof were caused wholly and solely by the negligence of Defendant ORTIZ their agents, servants and or agents, servants and or employees, departments, agencies and those acting under their direction, behest and control were negligent, careless, reckless, and violated applicable statutes, ordinances, rules, orders and requirements in the ownership, operation, management, maintenance, care and control of the aforementioned funeral home; failing to hire efficient and or sufficient personnel in connection with the operation, management, control, and or supervision of said funeral home; failing to train their employees and or agents so as to enable them to adequately and properly provide a safe environment; failing to train their employees and/or agents so as to enable them to adequately and properly control attendees and or persons in aforementioned funeral home; failing to promulgate proper and or adequate rules and regulations governing the proper supervision to be provided and rendered by those agents, servants and or employees hired to operate, manage, control, supervise, and or maintain said funeral home; failing to promulgate proper and or adequate rules and or regulations governing the proper care, guidance and or supervision to be provided and rendered to those attending the aforementioned funeral; failing to properly and or adequately monitor the care, guidance and or supervision provided at said funeral; failing to ensure that said funeral provided those in its charge and utilizing its facility with a safe and proper environment; failing to provide adequate supervision at the time and place of the incident; failing to adhere to implemented measures designed specifically to protect Plaintiff against such incidents; failing to abide by Defendants' security plan; failing to carry out Defendants' obligation and responsibility of

supervision; failing to prevent and or stop inappropriate activity at the funeral and other areas; having full knowledge that a violent threat had been made, but in failing to protect Plaintiffs; failing to provide adequate and necessary security at said funeral; and failing to provide adequate security during this period; failing to use that degree of care and caution warranted under all of the surrounding circumstances; failing to adequately protect Plaintiffs despite having full knowledge of the threat; failing to take reasonable measures and precautions to prevent further escalation of the incident despite Defendants' notice and knowledge of the threat; having specific knowledge and notice of the dangerous conduct which caused injury and knowledge that such acts could have been reasonably anticipated; failing to provide proper and adequate supervision of plaintiffs and to protect plaintiffs' safety during the hours of the funeral despite specific knowledge of a serious threat; failing to see the normal and foreseeable consequences of the situation created by the Defendants' negligence; failing to provide Plaintiffs with adequate safety; failing to provide the Plaintiffs with proper and adequate safety despite the presence of a NYPD Police Officer prior to the drive-by shooting; failing to adequately assess the situation before the drive-by shooting which did not take place instantaneously or without any forewarning; failing to properly investigate and or evaluate the results of any investigation of those persons, agents, servants and or employees hired to operate, manage, control, supervise, and or run said funeral; being requested to provide security by the Plaintiffs, but failing to provide any such adequate security; failing to prevent the Plaintiffs from being physically injured by JOHN DOES 1-4; failing to detain and or remove the JOHN DOES 1-4 from the presence of the injured Plaintiffs after knowing the violent and hostile propensity of said JOHN DOES 1-4 towards the Plaintiffs; failing to prevent the second assault that could have been avoided if Defendants acted appropriately under the circumstances; failing to stop the drive-by shooting that could have been avoided if Defendants acted appropriately under

the circumstances; failing to provide safety and security to Plaintiffs after providing them with an affirmative promise and assurance of protection and safety; failing to provide Plaintiffs with adequate safety after Plaintiffs detrimentally relied upon the Defendants' assurances that they were safe and would not be harmed any further; negligently acting or failing to act based upon the special relationship created between the Defendants and Plaintiff; in violating the Codes, Rules and Regulations of the State of New York, and in otherwise being negligent, grossly negligent, careless, reckless and violating applicable statutes, ordinances, rules, orders and requirements; and in otherwise failing to exercise a reasonable standard of care.

141. That by reason of the foregoing, Plaintiffs were caused to sustain serious, severe and permanent physical injuries, the full extent of which are as yet unknown, and to suffer pain, shock, mental anguish, psychological and emotional damage; that these injuries and their effects will be permanent; and as a result of said injuries the Plaintiffs has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Plaintiffs were, and will continue to be, rendered unable to perform Plaintiffs; normal day to day activities and duties and have sustained a resultant loss there from.

142. That ORTIZ had a duty to ensure the safety of the Plaintiffs.

143. That on or about September 3, 2021, ORTIZ negligently supervised Plaintiffs at the aforementioned funeral.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT INFLECTION OF
EMOTIONAL DISTRESS AGAINST DEFENDANTS, CITY OF NEW YORK, THE
NEW YORK CITY POLICE DEPARTMENT, AND ORTIZ, INDIVIDUALLY AND IN
HIS OFFICIAL CAPACITY**

144. Plaintiffs repeat and reallege each of the preceding allegations of this Complaint as if fully set forth herein.

145. Defendants' conduct towards Plaintiffs were negligent, unreasonable, and so extreme in

degree and outrageous in character as to go beyond all possible bounds of decency.

146. Defendants' conduct caused Plaintiffs severe emotional distress.

147. Defendants knew, or should have known, that such distress was substantially certain to occur as a result of their negligent conduct.

148. Plaintiffs have been damaged as a result of Defendants' conduct in an amount believed to equal or exceed the jurisdictional limit of this Court.

AS AND FOR A FOURTH CAUSE OF ACTION FOR *RESPONDEAT SUPERIOR*
AGAINST DEFENDANTS, CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, AND ORTIZ, INDIVIDUALLY AND IN HIS OFFICIAL CAPACITY

149. Plaintiff repeats and realleges each of the preceding allegations of this Complaint as if fully set forth herein.

150. Ortiz was acting in his capacity as an officer of the NYPD when his actions damaged Plaintiffs.

151. New York City, as the employer of Ortiz, is vicariously liable for the damages suffered by Plaintiffs as a result of the unlawful and wrongful acts of Ortiz.

152. Plaintiffs have been damaged a result of Defendants' actions in an amount believed to equal or exceed the jurisdictional limit of this court.

AS AND FOR A FIFTH CAUSE OF ACTION

153. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the previous paragraphs of this complaint, with the same force and effect as if more fully set forth at length herein.

154. That on September 3, 2021, Plaintiff, **TARIQ ROSARIO**, was in front of 1430 Unionport Road, Bronx, NY 10462 when JOHN DOES 1-4 in a MOTOR Vehicle started shooting at Plaintiff, **TARIQ ROSARIO**, causing plaintiff to sustain serious and grievous injuries, and as a result of

the negligence of the defendants caused plaintiff hereby to suffer serious physical and emotional injuries, all without any contributory conduct on the part of the plaintiff.

155. Solely by reason of the negligence of the Defendants, **JAVISH ORTIZ, individually and in his official capacity, THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT**, the plaintiff, **TARIQ ROSARIO**, suffered serious and grievous physical injuries and emotional and psychological injuries, and he became sick and disabled, and plaintiff were informed and believe that the injuries are of a permanent character.

156. Upon information and belief, the limitations of liability set forth in Article 16. of the CPLR do not apply to the causes of action set forth herein or one or more of the exemptions set forth in section 1602 apply to the facts of this case.

AS AND FOR A SIXTH CAUSE OF ACTION

157. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the previous paragraphs of this complaint, with the same force and effect as if more fully set forth at length herein.

158. That on September 3, 2021, plaintiff's decedent, **LASHAUN WHITFIELD**, was in front of 1430 Unionport Road, Bronx, NY 10462 when JOHN DOES 1-4 in a MOTOR Vehicle started shooting at plaintiff's decedent, **LASHAUN WHITFIELD**, causing plaintiff to sustain serious and grievous injuries and death, and as a result of the negligence of the defendants caused plaintiff hereby to suffer serious physical and emotional injuries, all without any contributory conduct on the part of the plaintiff.

159. Solely by reason of the negligence of the Defendants, **JAVISH ORTIZ, individually and in his official capacity, THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT**, plaintiff's decedent, **LASHAUN WHITFIELD**, suffered serious and grievous

physical injuries and emotional and psychological injuries and death.

160. Upon information and belief, the limitations of liability set forth in Article 16. of the CPLR do not apply to the causes of action set forth herein or one or more of the exemptions set forth in section 1602 apply to the facts of this case.

161. By reason of the foregoing, the plaintiff's decedent, **LASHAUN WHITFIELD**, was caused to sustain severe physical pain and mental anguish as a result of the aforementioned occurrence, until the time of death.

162. The amounts sought exceed the jurisdictional limits of all Courts which would otherwise have jurisdiction.

163. It is hereby alleged, pursuant to CPLR 1603, that the foregoing cause of action is exempt from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A SEVENTH CAUSE OF ACTION
WRONGFUL DEATH ON BEHALF OF GRECIA WHITFIELD
AS ADMINISTRATOR OF
THE ESTATE OF LASHAUN WHITFIELD,
DECEASED

164. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the previous paragraphs of this complaint, with the same force and effect as if more fully set forth at length herein.

165. That by reason of the foregoing, decedent **LASHAUN WHITFIELD** sustained severe bodily injury resulting in wrongful death.

166. That by reason of the foregoing, decedent **LASHAUN WHITFIELD** was caused to sustain severe and grievous injuries, suffered extreme pain, shock and emotional distress, pre-impact terror, fear of impending death and conscious pain and suffering and was otherwise injured

in and about his person and body which caused his death

167. That as a result of the foregoing, decedent **LASHAUN WHITFIELD** left surviving spouse and next of kin and distributes.

168. That as a result of the foregoing, decedent **LASHAUN WHITFIELD's** estate became liable for and expended money for funeral and other expenses.

169. That as a result of the foregoing, decedent **LASHAUN WHITFIELD's** estate suffered pecuniary damages.

170. That as a result of the foregoing, decedent **LASHAUN WHITFIELD's** estate sustained all other damages allowed by law.

171. That by virtue of the decedent's wrongful death the decedent's next-of-kin have suffered pecuniary damages; exemplary damages, compensatory damages against the defendants. The plaintiffs also make a claim for pre-death pain and suffering, pre-impact terror, conscious pain and suffering, loss of consortium, loss of parental guidance, loss of marital guidance, loss of financial support, wrongful death, medical bills, funeral expenses and other economic losses, interest and costs as monetary damages.

172. That as a result of the foregoing, **GRECIA WHITFIELD** as Administrator of the Estate of **LASHAUN WHITFIELD**, Deceased, has been damaged in an amount exceeding the jurisdictional limits of all lower courts of the State of New York.

AS AND FOR AN EIGHTH CAUSE OF ACTION

173. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the previous paragraphs of this complaint, with the same force and effect as if more fully set forth at length herein.

174. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the previous

paragraphs of this complaint, with the same force and effect as if more fully set forth at length herein.

175. By reason of the foregoing, the plaintiff's decedent, **LASHAUN WHITFIELD**, prior to his death, sustained bodily and internal injuries, including gunshot wound(s) to his chest, a severe shock to his nervous system, and was caused to suffer severe physical pain and mental anguish as a result of the aforementioned occurrence, until the time of his death.

176. The amounts sought exceed the jurisdictional limits of all Courts which would otherwise have jurisdiction.

177. It is hereby alleged, pursuant to CPLR 1603, that the foregoing cause of action is exempt from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

**AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF GRECIA
WHITFIELD
AGAINST ALL DEFENDANTS
(LOSS OF SERVICES):**

178. Plaintiffs, repeat and realleges each and every allegation set forth above, with the same force and effect as if more fully set forth at length therein.

179. Plaintiff **GRECIA WHITFIELD**, was the wife of Plaintiff's decedent, **LASHAUN WHITFIELD**, and as such, was entitled to his services, care, maintenance society, companionship, consortium and support.

180. By reason of the foregoing, plaintiff **GRECIA WHITFIELD** was deprived of services, society, companionship, consortium and support of her late husband, plaintiff's decedent, **LASHAUN WHITFIELD**, in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A TENTH CAUSE OF ACTION

181. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the previous

paragraphs of this complaint, with the same force and effect as if more fully set forth at length herein.

182. That all times hereinafter mentioned, Plaintiff L.S., was an infant under the age of 18 years.

183. That all times hereinafter mentioned, the decedent, **LASHAUN WHITFIELD** was the father of L.S., an infant.

184. That L.S. was present with the decedent, **LASHAUN WHITFIELD** on September 3, 2021 when the decedent, **LASHAUN WHITFIELD** was shot and killed in front of 1430 Unionport Road, Bronx, NY 10462, causing **LASHAUN WHITFIELD** to sustain serious and grievous injuries as a result.

185. That all times hereinafter mentioned, L.S. was in fear for his own life as he observed the murder of **LASHAUN WHITFIELD**.

186. That all times hereinafter mentioned on September 3, 2021 at the time of the attack on **LASHAUN WHITFIELD**, L.S. was in the zone of danger and feared that JOHN DOES 1-4 would attack him as well and feared for his life as a result.

187. That as a result of being present with **LASHAUN WHITFIELD** and seeing the attack and murder on **LASHAUN WHITFIELD** by **JOHN DOES 1-4**, and fearing for his own life, L.S. suffered serious personal injuries, pain, fear, mental anguish and emotional injuries.

188. Solely by reason of the negligence of the Defendants, **JAVISH ORTIZ, individually and in his official capacity, THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT**, the plaintiff suffered serious and grievous physical injuries and emotional and psychological injuries, and he became sick and disabled, and plaintiff were informed and believe that the injuries are of a permanent character.

189. That L.S., suffered serious and severe psychiatric and emotional damages as a result of

witnessing his father being attacked and murdered.

190. At and about the times immediately preceding, contemporaneous with and following the occurrence complained of herein, the infant plaintiff, **L.S.**, was caused to be placed within the area and zone of danger of vulnerability to physical harm and defendants' actionable fault as alleged in this complaint and from the proximate effect thereof.

191. That the infant plaintiff, **L.S.**, while within the zone of danger, was caused under all of the circumstances surrounding the occurrence, to have imposed upon his view of observation, the knowledge that severe harm and serious peril befell his father, the decedent, **LASHAUN WHITFIELD**.

192. By reason of the foregoing, the infant plaintiff, **L.S.**, has been caused to suffer severe mental and emotional trauma, distress, disturbance, depression and anguish as a result of the entirety of the occurrence and the adverse effects thereof upon her own well-being and the well-being of his loved one, **LASHAUN WHITFIELD**, and upon information and belief, some of these injuries are of a permanent and lasting nature.

193. The amount of damages sought exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

194. It is hereby alleged pursuant to CPLR 1603, that the foregoing cause of action is exempt from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR AN ELEVENTH CAUSE OF ACTION

195. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the previous paragraphs of this complaint, with the same force and effect as if more fully set forth at length herein.

196. At all times hereinafter mentioned, the plaintiff, **GRECIA WHITFIELD**, was and still is the mother and natural guardian of the infant plaintiff, **L.S.**

197. By reason of the foregoing, the plaintiff, **GRECIA WHITFIELD**, has been deprived of the services and companionship of her son, the infant plaintiff, **L.S.**, and has been caused to expend and become obligated to expend certain sums of money for medical attention and medicines on his behalf, all to his damage.

198. The amount of damages sought exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

199. It is hereby alleged pursuant to CPLR 1603, that the foregoing cause of action is exempt from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A TWELFTH CAUSE OF ACTION

200. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the previous paragraphs of this complaint, with the same force and effect as if more fully set forth at length herein.

201. That all times hereinafter mentioned, the decedent, **LASHAUN WHITFIELD** was the father of Plaintiff, **SHAMYA SANTOS**.

202. That Plaintiff, **SHAMYA SANTOS** was present with the decedent, **LASHAUN WHITFIELD** on September 3, 2021 when the decedent, **LASHAUN WHITFIELD** was shot and killed in front of 1430 Unionport Road, Bronx, NY 10462, causing **LASHAUN WHITFIELD** to sustain serious and grievous injuries as a result.

203. That all times hereinafter mentioned, Plaintiff, **SHAMYA SANTOS** was in fear for her own life as she observed the murder of her father, **LASHAUN WHITFIELD**.

204. That all times hereinafter mentioned on September 3, 2021 at the time of the attack on **LASHAUN WHITFIELD**, Plaintiff, **SHAMYA SANTOS** was in the zone of danger and feared that JOHN DOES 1-4 would attack her as well and feared for her life as a result.

205. That as a result of being present with **LASHAUN WHITFIELD** and seeing the attack and murder on **LASHAUN WHITFIELD** by **JOHN DOES 1-4**, and fearing for her own life, Plaintiff, **SHAMYA SANTOS** suffered serious personal injuries, pain, fear, mental anguish and emotional injuries.

206. Solely by reason of the negligence of the Defendants, **JAVISH ORTIZ, individually and in his official capacity, THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT**, the Plaintiff, **SHAMYA SANTOS** suffered serious and grievous physical injuries and emotional and psychological injuries, and she became sick and disabled, and plaintiff were informed and believe that the injuries are of a permanent character.

207. That Plaintiff, **SHAMYA SANTOS** suffered serious and severe psychiatric and emotional damages as a result of witnessing her father being attacked and murdered.

208. At and about the times immediately preceding, contemporaneous with and following the occurrence complained of herein, the Plaintiff, **SHAMYA SANTOS**, was caused to be placed within the area and zone of danger of vulnerability to physical harm and defendants' actionable fault as alleged in this complaint and from the proximate effect thereof.

209. That the Plaintiff, **SHAMYA SANTOS**, while within the zone of danger, was caused under all of the circumstances surrounding the occurrence, to have imposed upon her view of observation, the knowledge that severe harm and serious peril befell her father, the decedent, **LASHAUN WHITFIELD**.

210. By reason of the foregoing, the Plaintiff, **SHAMYA SANTOS**, has been caused to suffer

severe mental and emotional trauma, distress, disturbance, depression and anguish as a result of the entirety of the occurrence and the adverse effects thereof upon her own well-being and the well-being of her loved one, **LASHAUN WHITFIELD**, and upon information and belief, some of these injuries are of a permanent and lasting nature.

211. The amount of damages sought exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

212. It is hereby alleged pursuant to CPLR 1603, that the foregoing cause of action is exempt from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A THIRTEENTH CAUSE OF ACTION

213. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the previous paragraphs of this complaint, with the same force and effect as if more fully set forth at length herein.

214. At all times hereinafter mentioned, the plaintiff, **GRECIA WHITFIELD**, was and still is the mother of the Plaintiff, **SHAMYA SANTOS**.

215. By reason of the foregoing, the plaintiff, **GRECIA WHITFIELD**, has been deprived of the services and companionship of her daughter, the Plaintiff, **SHAMYA SANTOS**, and has been caused to expend and become obligated to expend certain sums of money for medical attention and medicines on her behalf, all to her damage.

216. The amount of damages sought exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

217. It is hereby alleged pursuant to CPLR 1603, that the foregoing cause of action is exempt from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR

1602.

AS AND FOR A FOURTEENTH CAUSE OF ACTION

218. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the previous paragraphs of this complaint, with the same force and effect as if more fully set forth at length herein.

219. That all times hereinafter mentioned, the decedent, **LASHAUN WHITFIELD** was the wife of Plaintiff, plaintiff, **GRECIA WHITFIELD**.

220. That Plaintiff, plaintiff, **GRECIA WHITFIELD** was present with the decedent, **LASHAUN WHITFIELD** on September 3, 2021 when the decedent, **LASHAUN WHITFIELD** was shot and killed in front of 1430 Unionport Road, Bronx, NY 10462, causing **LASHAUN WHITFIELD** to sustain serious and grievous injuries as a result.

221. That all times hereinafter mentioned, plaintiff, **GRECIA WHITFIELD** was in fear for her own life as she observed the murder of her husband, **LASHAUN WHITFIELD**.

222. That all times hereinafter mentioned on September 3, 2021 at the time of the attack on **LASHAUN WHITFIELD**, plaintiff, **GRECIA WHITFIELD** was in the zone of danger and feared that JOHN DOES 1-4 would attack her as well and feared for her life as a result.

223. That as a result of being present with **LASHAUN WHITFIELD** and seeing the attack and murder on **LASHAUN WHITFIELD** by **JOHN DOES 1-4**, and fearing for her own life, plaintiff, **GRECIA WHITFIELD** suffered serious personal injuries, pain, fear, mental anguish and emotional injuries.

224. Solely by reason of the negligence of the Defendants, **JAVISH ORTIZ, individually and in his official capacity, THE CITY OF NEW YORK, and NEW YORK CITY POLICE DEPARTMENT**, the plaintiff, **GRECIA WHITFIELD** suffered serious and grievous physical

injuries and emotional and psychological injuries, and she became sick and disabled, and plaintiff were informed and believe that the injuries are of a permanent character.

225. That plaintiff, **GRECIA WHITFIELD** suffered serious and severe psychiatric and emotional damages as a result of witnessing her husband being attacked and murdered.

226. At and about the times immediately preceding, contemporaneous with and following the occurrence complained of herein, the plaintiff, **GRECIA WHITFIELD**, was caused to be placed within the area and zone of danger of vulnerability to physical harm and defendants' actionable fault as alleged in this complaint and from the proximate effect thereof.

227. That the plaintiff, **GRECIA WHITFIELD**, while within the zone of danger, was caused under all of the circumstances surrounding the occurrence, to have imposed upon her view of observation, the knowledge that severe harm and serious peril befell her husband, the decedent, **LASHAUN WHITFIELD**.

228. By reason of the foregoing, the plaintiff, **GRECIA WHITFIELD**, has been caused to suffer severe mental and emotional trauma, distress, disturbance, depression and anguish as a result of the entirety of the occurrence and the adverse effects thereof upon her own well-being and the well-being of her loved one, **LASHAUN WHITFIELD**, and upon information and belief, some of these injuries are of a permanent and lasting nature.

229. The amount of damages sought exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

230. It is hereby alleged pursuant to CPLR 1603, that the foregoing cause of action is exempt from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
AGAINST DEFENDANTS, CITY OF NEW YORK and THE NEW YORK CITY
POLICE DEPARTMENT

231. Plaintiff repeats and realleges each of the preceding allegations of this Complaint as if fully set forth herein.

232. That the defendants, **CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT**, were negligent in its hiring and training practices of its police officers: in that it retained officers not fit by temperament or personality to be officers, including Ortiz; in failing to fire officers not fit for their position; in failing to instruct officers as to the civil rights of Plaintiffs; in the malicious treatment of plaintiffs; and in failing to avoid the occurrence although there was an opportunity to do so.

233. As a result of those breaches, which were the proximate causes of Plaintiffs' injury, Plaintiffs suffered harm and damages.

234. Solely as a result of the foregoing, plaintiff demands judgment for negligence against the defendants **CITY OF NEW YORK, ORTIZ AND THE NEW YORK CITY POLICE DEPARTMENT** in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

AS AND FOR A SIXTEENTH CAUSE OF ACTION

235. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the previous paragraphs of this complaint, with the same force and effect as if more fully set forth at length herein.

236. By reason of the foregoing, the plaintiff's decedent, **LASHAUN WHITFIELD**, prior to his death, sustained bodily and internal injuries, including gunshot wounds to his chest, a severe

shock to his nervous system, and was caused to suffer severe physical pain and mental anguish as a result of the aforementioned occurrence, until the time of his death.

237. The amounts sought exceed the jurisdictional limits of all Courts which would otherwise have jurisdiction.

238. It is hereby alleged, pursuant to CPLR 1603, that the foregoing cause of action is exempt from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION

239. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the previous paragraphs of this complaint, with the same force and effect as if more fully set forth at length herein.

240. By reason of the foregoing, the plaintiff's decedent, **LASHAUN WHITFIELD**, was caused to sustain severe physical pain and mental anguish as a result of the aforementioned occurrence, until the time of his death.

241. The amounts sought exceed the jurisdictional limits of all Courts which would otherwise have jurisdiction.

242. It is hereby alleged, pursuant to CPLR 1603, that the foregoing cause of action is exempt from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR AN EIGHTEENTH CAUSE OF ACTION

243. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the previous paragraphs of this complaint, with the same force and effect as if more fully set forth at length herein.

244. That at all times hereinafter mentioned, the plaintiff L.S., an infant, is the son of the deceased, LASHAUN WHITFIELD, who was responsible for his support, care and maintenance and the plaintiff, L.S., an infant, was entitled to the support, care, parental guidance and love of the deceased, LASHAUN WHITFIELD and was deprived of the loss of support, care, parental guidance and love of his father.

245. That as a result of the happening of this accident and the wrongful death of LASHAUN WHITFIELD due to the negligence of the defendants herein, the plaintiff, L.S., an infant, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts in the State of New York.

AS AND FOR A NINETEENTH CAUSE OF ACTION

246. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the previous paragraphs of this complaint, with the same force and effect as if more fully set forth at length herein.

247. That at all times hereinafter mentioned, the plaintiff, **SHAMYA SANTOS**, is the daughter of the deceased, LASHAUN WHITFIELD, who was responsible for her support, care and maintenance and the plaintiff, **SHAMYA SANTOS**, was entitled to the support, care, parental guidance and love of the deceased, LASHAUN WHITFIELD and was deprived of the loss of support, care, parental guidance and love of her father.

248. That as a result of the happening of this accident and the wrongful death of LASHAUN WHITFIELD due to the negligence of the defendants herein, the plaintiff, **SHAMYA SANTOS**, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts in the State of New York.

WHEREFORE, Plaintiffs, GRECIA WHITFIELD, as Administratrix of the Estate of LASHAUN WHITFIELD, deceased, L.S., an infant by his mother and natural guardian, GRECIA WHITFIELD, and GRECIA WHITFIELD, individually, SHAMYA SANTOS, and TARIQ ROSARIO, demand judgment against Defendants, JAVISH ORTIZ, individually and in his official capacity, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, and JOHN DOES 1-4, in an amount that exceeds the jurisdictional limits of all lower courts in which this action could otherwise have been brought, thus warranting the jurisdiction of this Court, together with the costs and disbursements of this action and such other and further relief as this Court may deem just, proper, and equitable.

Dated: New York, New York
August 25, 2022

MARK DAVID SHIRIAN P.C.

By:



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ATTORNEY'S VERIFICATION BY AFFIRMATION

Mark D. Shirian, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **MARK DAVID SHIRIAN P.C.**, attorneys of record for Plaintiffs.

I have read the annexed **SUMMONS AND VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiffs is because Plaintiffs is/are not presently in the county wherein the attorneys for the Plaintiff maintain their offices.

Dated: New York, New York
August 25, 2022



Mark David Shirian

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.

GRECIA WHITFIELD, as Administratrix of the Estate of LASHAUN WHITFIELD, deceased,
L.S., an infant by his mother and natural guardian, GRECIA WHITFIELD, and GRECIA
WHITFIELD, individually, SHAMYA SANTOS, and TARIQ ROSARIO,

Plaintiffs,

-against-

JAVISH ORTIZ, individually and in his official capacity, THE CITY OF NEW YORK, NEW
YORK CITY POLICE DEPARTMENT, and JOHN DOES 1-4,

Defendants.

SUMMONS & VERIFIED COMPLAINT

MARK DAVID SHIRIAN P.C.
Attorneys for Plaintiffs
228 East 45th Street, Suite 1700-B
New York, New York 10017
(212) 931-6530

TO:

Service of a copy of the within

is hereby admitted.

Dated:

Attorneys for

CERTIFICATION

I hereby certify that, to the best of my knowledge, information and belief, the presentation of
SUMMONS & VERIFIED COMPLAINT and the contentions therein are not frivolous as
defined in Subsection (c) of Section 130-1.1 of the Rules of the Chief Administrator (22NYCRR).

Dated: New York, New York
August 25, 2022



Mark D. Shirian, Esq.
Attorneys for Plaintiff